

	2025-01481522	pro hac vice are GRANTED. (Cal. Rules of Court, Rule 9.40.) <i>Case Management Conference set this date is vacated.</i> <i>Jury Trial set June 21, 2027 at 8:30 a.m. in Department C44.</i> <i>Trial estimate: 7 days</i> Moving parties shall give notice.
9	Truong vs. MKT, Inc. 2025-01495218	Demurrer to Amended Complaint Defendants Nguyen Thuy Linh and D&L Tran Corporation’s demurrer to plaintiff Manh Van Truong aka Mike Vungtau’s Second Amended Complaint [SAC] is SUSTAINED as to the 3rd cause of action for false light invasion of privacy and 5th cause of action for intentional and/or negligent infliction of emotional distress, with leave to amend, and otherwise OVERRULED. (Code Civ. Proc., § 430.10, subd. (e) [authorizing demurrer for failure to state facts sufficient to constitute a cause of action].) Plaintiff is granted 15 days’ leave to amend. Moving parties shall give notice. <u>1st cause of action: commercial misappropriation (Civ. Code, § 3344); 2nd cause of action: common law misappropriation.</u> These causes of action state sufficient facts. (Civ. Code, § 3344 [authorizing damages / civil penalties against “[a]ny person who knowingly uses another's name, voice, signature, photograph, or likeness, in any manner, on or in products, merchandise, or goods, or for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods, or services, without that person's prior consent”]; <i>Kirby v. Sega of America, Inc.</i> (2006) 144 Cal.App.4th 47, 55 [common law misappropriation elements]; SAC, ¶¶ 3-12, 14 [misappropriation, lack of consent, proximately caused damages].) Contrary to moving parties’ contentions, the SAC sufficiently alleges agency and/or ratification, either of which is sufficient to support joint liability by these moving parties. (SAC, ¶¶ 3, 5 [agency], 6, 11 [ratification]; <i>Skopp v. Weaver</i> (1976) 16 Cal.3d 432, 437 [“numerous cases have held a pleading of agency an averment of ultimate fact”]; <i>Spahn v. Guild Industries Corp.</i> (1979) 94 Cal.App.3d 143, 156 [“an agent's liability for

	compensatory and punitive damages may be imputed to even an innocent principal,” and may be imputed where “the principal subsequently ratified the agent's actions”]; see also <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [a complaint is good against a general demurrer so long as it states a valid cause of action under any theory]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 [“demurrer does not lie to a portion of a cause of action”].) The authorities cited by moving parties regarding agency were not pleading cases, and did not hold that a plaintiff must allege facts demonstrating a principal’s right to control the agent at the pleading stage, in order to overcome a demurrer. (See <i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 886 [in “determining the sufficiency of a pleading ... the existence of an agency relationship is the ‘essential fact,’ and where alleged must be accepted as true”].) Further, ratification is sufficiently alleged (SAC, ¶¶ 6, 11); whether moving parties in reality ratified conduct by other defendants is a question of fact for the trier of fact. (<i>C.R. v. Tenet Healthcare Corp.</i> (2009) 169 Cal.App.4th 1094, 1110 [whether ratification occurred “is generally a factual question”]; see also <i>Rakestraw v. Rodrigues</i> (1972) 8 Cal.3d 67, 73 [“A purported agent's act may be adopted expressly or it may be adopted by implication based on conduct of the purported principal from which an intention to consent to or adopt the act may be fairly inferred”].) <u>3rd cause of action: false light invasion of privacy.</u> This cause of action sufficiently alleges a false publication, i.e. the videos allegedly falsely implying plaintiff’s affiliation with and/or approval of defendants’ restaurants. (SAC, ¶¶ 3, 6-8; see also <i>Balla v. Hall</i> (2021) 59 Cal.App.5th 652, 688-690 [false implication of endorsement can give rise to false light claim].) Defendants’ alleged agency and/or ratification is also sufficiently alleged as discussed above. However, unlike the first two causes of action for misappropriation, which only require defendants’ alleged misuse of plaintiff’s name/likeness, this cause of action also requires that the publication be defamatory. (<i>Jackson v. Mayweather</i> (2017) 10 Cal.App.5th 1240, 1264 [false light elements, including allegations that subject publication “exposes a person to hatred, contempt, ridicule, or obloquy and assumes the audience will recognize it as such”].) This is not sufficiently alleged.
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“Where the words or other matters which are the subject of a defamation action are of ambiguous meaning, or innocent on their face and defamatory only in the light of extrinsic circumstances, the plaintiff must plead and prove that as used, the words had a particular meaning, or ‘innuendo,’ which makes them defamatory ... [w]here the language at issue is ambiguous, the plaintiff must also allege the extrinsic circumstances which show the third person reasonably understood it in its derogatory sense (the ‘inducement’).” (*Smith v. Maldonado* (1999) 72 Cal.App.4th 637, 645–646; internal citations omitted.) Here, there are no facts alleged to show how listeners would understate the allegedly false publications to be “derogatory” (*Smith v. Maldonado, supra* at 646), or expose plaintiff to “hatred, contempt, ridicule, or obloquy” (*Jackson v. Mayweather, supra* at 1264). “[A] harmful meaning must still be clear to constitute defamation per se.” (*Balla v. Hall, supra* at 690.)

4th cause of action: unfair business practices.

This cause of action states sufficient facts based on false misappropriation of plaintiff’s name/likeness. (SAC, ¶¶ 3-12, 14, 18; Bus. & Prof. Code, §§ 17200, 17203 [unfair business practices based on, *inter alia*, unlawful business acts or practices, or unfair, deceptive, untrue or misleading advertising, as well as plaintiff’s entitlement to restitution and/or injunctive relief]; see also Civ. Code, § 3344, subd. (a)(2) [authorizing injunctive relief for misappropriation]; *Schnall v. Hertz Corp.* (2000) 78 Cal.App.4th 1144, 1153 [“By proscribing ‘any unlawful’ business practice, section 17200 ‘borrows’ violations of other laws and treats them as unlawful practices that the unfair competition law makes independently actionable”]; *Ingels v. Westwood One Broadcasting* (2005) 129 Cal.App.4th 1050, 1060 [UCL claim requires allegations of valid underlying predicate].)

5th cause of action: intentional and/or negligent infliction of emotional distress.

This cause of action fails to state sufficient facts to show why posting allegedly false endorsement videos is “so extreme as to exceed all bounds of that usually tolerated in a civilized community,” as required for intentional infliction of emotional distress. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 [elements]; *Fowler v. Varian Associates, Inc.* (1987) 196 Cal.App.3d 34, 44 [“it is for the court to determine, in the first instance, whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery”].)

		As to negligent infliction of emotional distress, the SAC fails to allege any facts showing any duty to plaintiff on defendants' part. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072 [negligent causing of emotional distress is not an independent tort, but is instead the tort of negligence]; <i>Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.</i> (1989) 48 Cal.3d 583, 588 ["[t]he traditional elements of duty, breach of duty, causation, and damages apply"]; <i>Wooden v. Raveling</i> (1998) 61 Cal.App.4th 1035, 1038 [the duty must be one "assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two"].) <i>Case Management Conference continued to November 13, 2026 at 8:30 a.m. in Department C44.</i> Clerk to give notice.
10	Wang vs. Liu 2023-01321234	Motion for Terminating Sanctions <i>Continued to CM02. See minute order dated 5/27/26.</i>
11	Yang vs. TBG Construction & Flooring Company, Inc. 2024-01385711	Motion to Set Aside/Vacate Judgment: No tentative.
12	Yu vs. JJC & CO. LLC 2026-01547713	Motion to Compel Arbitration Defendants JJC & CO. LLC, Jifeng Nan and Zhuofan Duan's Motion to Compel Arbitration is GRANTED. "[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable." (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4 th 1164, 1169; (Code Civ. Proc., § 1281.2.) "California contract law applies to determine whether the parties formed a valid agreement to arbitrate." (<i>Id.</i> at 1170.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show